3737

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE.

By virtue of the authority vested in me by an Act of Congress entitled "An Act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination and order:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, Ninety-three (93) shares of common stock of the Acme Cement Plaster Company, a corporation organized under the laws of the State of Missouri, of the par value of One Hundred Dollars ($100.00) each, which said Ninety-three (93) shares were heretofore seized by the Alien Property Custodian under the provisions of the said Act, as the property of Charles N. Regnier, of Heidelberg, Germany.

My reasons for the foregoing determination and order are:

(a) That property such as that herein described cannot usually be sold to advantage at public sale after public or other advertisement.

(b) That an advantageous offer, namely, One Hundred and Fifty Dollars ($150.00) per share has been received by the Alien Property Custodian for the purchase of the said Ninety-three (93) shares, which, as the Alien Property Custodian is informed, represents an increase of Fifty per centum (50%) over the price which the said Charles N. Regnier paid for the said shares.

(c) That, as the Alien Property Custodian is informed, the holders of Nineteen Thousand, Seven Hundred and Thirty-six (19,736) out of Twenty Thousand (20,000) shares of the said stock have already agreed to sell their respective holdings at the above named price of One Hundred and Fifty Dollars ($150.00) per share.

(d) That an attempted sale at auction would be a useless formality and would involve unnecessary expense, delay and inconvenience, which should be avoided.

WARREN G HARDING

THE WHITE HOUSE,
May 9, 1923.

[No. 3837.]

GOVERNMENT PRINTING OFFICE